

STATE OF NEW YORK

8158--B

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to accidental disability retirement for sheriffs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 3 of subdivision e of section 556 of the retire-
2 ment and social security law, as added by chapter 165 of the laws of
3 1995, is amended to read as follows:

4 3. A pension of [~~two-thirds~~] three-quarters of [~~his or her~~] the
5 member's final average salary. The payment of such pension shall be
6 subject to the provisions of section [~~three hundred~~] sixty-four of this
7 chapter.

8 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill will increase the accidental disability retirement benefit for deputy sheriffs covered under Article 14-B of the Retirement and Social Security Law (RSSL). The proposed benefit is 75% of final average salary (FAS) minus Workers' Compensation. The current benefit is two-thirds of FAS minus Workers' Compensation.

Insofar as this bill affects the New York State and Local Employees' Retirement System (NYSLERS), accrued benefits would increase by approximately \$5.6 million.

Benefit improvements would be funded by increasing the billing rates charged annually. The annual contribution required by all participating employers in NYSLERS would increase 0.02% of billable salary, or approx-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD01325-05-6

imately \$280,000 to the state of New York and \$420,000 to the local participating employers.

Additionally, there would be a cost for future service accruals which would increase the annual billing rates for RSSL sections 551, 552, and 553 by 0.3% of salary.

Employer costs would vary according to their plan coverage and salary reported in RSSL sections 551, 552, and 553.

These estimated costs are based on 3,116 affected members, with annual salary of approximately \$328 million as of March 31, 2025.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated January 12, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-30. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.